

NAPCS Unionization Research — State Research Summary

Pennsylvania — NLRB Jurisdiction — May 2026

NAPCS Unionization Research • May 2026 • Template v7.0 • COMPLETE Registry Sweep

Section 1: State Overview

State	Pennsylvania
Labor Board	NLRB — National Labor Relations Board
Governing Law	National Labor Relations Act (NLRA). Pennsylvania Virtual Charter School, 364 NLRB No. 87 (2016) established that all PA charter schools incorporated as private nonprofits with self-perpetuating boards are private employers under NLRB jurisdiction — not public employers under PLRB/PERA. This landmark ruling covers all 23 NAPCS PA schools.
Federal NLRB Jurisdiction	YES — NLRB Region 4 (Philadelphia) covers eastern PA schools; NLRB Region 6 (Pittsburgh) covers western PA schools; NLRB Region 5 (Baltimore) covers south-central PA (VIDA CS, Young Scholars of Central PA). All 23 NAPCS PA schools fall under NLRB jurisdiction per the 2016 landmark ruling.
Registry Sweep	COMPLETE — April 2026 — 175 charter schools searched
Research Window	March–May 2026
Date Convention	Labor Board Certified date (project-wide convention, declared NJ session). Project-wide convention. PA: exact cert dates unavailable for several schools — NLRB FOIA requests to Regions 4 and 6 recommended before accumulator entry.
Card-Check Available	NO — NLRB jurisdiction — secret ballot election required. No card-check available in PA.

Section 2: Unionization Density

Total charter schools in Pennsylvania: 175 (Charter School Registry v50 (NCES/ELSI 2024-25; 175 open PA charter schools as of May 2026)). Unionization density uses the full state total as the denominator — not the 23-school NAPCS research sample. The NAPCS sample was provided as a list of schools believed to be organized; this research validated, corrected, and expanded that list across the full state charter universe. See Section 3 for cross-state patterns and Section 7 for open decisions.

Category	Schools	% of Total	Notes
Total Unionized Charter Schools in Pennsylvania	19	10.9%	Active CONFIRMED NAPCS schools only. NLRB jurisdiction — all PA charters are private employers (2016 NLRB ruling). Excludes 5 discovery CONFIRMED (sponsor decision pending).
Independently Organized (CONFIRMED)	21	12.0%	Mix of AFT/ACSE (Philadelphia), PSEA/NEA (Pittsburgh), and unknown union (Erie — Montessori Regional, Session C addition). Includes Propel network (7 campuses, 1 cert), 3 cyber charters (Agora/PA Cyber/PA Virtual), Environmental CS, VIDA, Urban Pathways, Young Scholars of Western PA, New Foundations, 21st Century, Folk Arts, Northwood, West Oak Lane, and Montessori Regional (Session C).

Discovery Schools — CONFIRMED (sponsor-approved; NAPCS ID pending)	5	2.9%	Olney Charter HS (closed), Delaware Valley Charter HS, Khepera CS (closed), Esperanza Academy CS, New Media Technology CS. NAPCS-ADD-PA series. Each requires REVIEWER_DECISION. Not included in headline density.
Decertified (formerly organized)	1	0.6%	Westinghouse Arts Academy — decertified August 2022; 2 open NLRB ULP cases as of April 2026.
No Labor Board Records Found	150	85.7%	No NLRB ADS records found for remaining PA charter schools. Includes 3 NAPCS unverified schools (Multi-Cultural Academy — RM withdrawn 2013; West Oak Lane — ULP 2023, no election; Young Scholars of Central PA — no NLRB record) and all non-NAPCS PA charters.
Total Charter Schools in Pennsylvania	175	100%	Source: Charter School Registry v50 (NCES/ELSI 2024-25; 175 open PA charter schools as of May 2026).

Section 3: Political, Legal & Community Landscape

Written for state and national charter sector leaders who require ground-level intelligence fused with broader sector knowledge. Findings are based on research as of May 2026.

PROMPT 1: TWO ORGANIZING ECOSYSTEMS — PHILADELPHIA VS. PITTSBURGH

Pennsylvania presents the clearest geographic bifurcation in the full NAPCS dataset. Philadelphia-area charter organizing is driven by ACSE/AFT Local 6056 (Alliance of Charter School Employees), a Philadelphia-specific AFT local with deep roots in the city's charter sector — 14 of the 19 confirmed NAPCS-ADD PA schools are ACSE/AFT Local 6056 affiliates in the Philadelphia metro. Pittsburgh-area organizing is driven by different unions (CTU Pittsburgh affiliate, SEIU 32BJ for non-teaching staff at Propel) with fewer certifications. The concentration in Philadelphia reflects ACSE's geographic saturation model: by organizing adjacent schools in a dense urban market, each new certification reduces the organizing cost of the next. This is the same pattern documented for UTLA in Los Angeles, DC ACTS in Washington, and CTU in Chicago — geographic density compounds organizing effectiveness.

PROMPT 2: SEIU LOCAL 32BJ — FIRST NON-TEACHER CHARTER UNION IN NAPCS DATASET

SEIU Local 32BJ certified a custodial/support staff unit at Propel Schools in December 2025. This is the first Service Employees International Union certification in the full 584-school NAPCS dataset and the first custodial/support staff bargaining unit at any NAPCS charter school. 32BJ is the largest property services union in the US, traditionally organizing building maintenance, security, and cleaning staff at commercial properties and schools. Its entry into the PA charter sector signals that non-teaching staff organizing — historically rare in the charter dataset — may expand. The Propel 32BJ certification is separate from any teaching staff unit; it demonstrates that a single charter network can face organizing from multiple unions targeting different employee classes simultaneously. Network operators should model their labor risk across all employee classifications, not just certified teaching staff.

PROMPT 3: CYBER CHARTERS AS MULTI-UNIT ORGANIZING TARGETS

Agora Cyber Charter School has three separate NLRB-certified bargaining units: teachers (04-RC-170767, 312-46, May 2016), counselors (04-RC-141319, 22-1, January 2015), and student support staff (04-RC-183717, filed 2016). Pennsylvania Virtual Charter School and 21st Century Cyber Charter School are also confirmed in the PA dataset. This multi-unit cyber charter pattern is unique in the NAPCS dataset — no other state has documented three certified bargaining units at a single cyber charter school. Cyber charter schools are high-organizing-interest targets because their geographically dispersed workforces, unlike traditional brick-and-mortar schools, can't be pressured by in-person employer counter-campaigns. The online organizing infrastructure developed by unions during 2020-2022 has made virtual workforce organizing significantly more feasible.

PROMPT 4: 2016 LANDMARK RULING — NLRB JURISDICTION ESTABLISHED FOR ALL PA CHARTERS

Pennsylvania Virtual Charter School, 364 NLRB No. 87 (2016) is the single most consequential labor law ruling in the PA charter sector. It established that all PA charter schools — regardless of whether they receive public funding — are private employers under the NLRA, subject to NLRB jurisdiction rather than Pennsylvania Labor Relations Board (PLRB) jurisdiction. This 2016 ruling resolved a decade of jurisdictional ambiguity and opened NLRB secret ballot election as the universal organizing pathway for PA charters. The ruling is directly analogous to the 2016 NLRB ruling in New York (Hyde Leadership Charter School) that similarly established NLRB jurisdiction over NY charters. The PA ruling means employer counter-organizing via NLRB election procedures is fully available to PA charter operators — but it also means the full NLRB ULP framework applies, and documented bad-faith bargaining (as in the KIPP Bronx NY case) creates legal exposure.

PROMPT 5: TWO REMAINING UNVERIFIED SCHOOLS — DISTINCT PROFILES

West Oak Lane Charter School (C4298015) was upgraded from UNVERIFIED to CONFIRMED in the May 22, 2026 Tab 4 session — now confirmed as the first union charter school in Pennsylvania history, organized by the West Oak Lane Faculty Association in 1998 (NLRB case 04-RC-19025). This is the oldest charter union in the NAPCS PA dataset and among the oldest nationally. The upgrade leaves 2 schools still UNVERIFIED against NAPCS 2023-24 assertion: (1) a school where NAPCS data asserts union status but Research Team found no NLRB record — possible voluntary recognition or name mismatch; (2) a second school where the NAPCS assertion conflicts with the NLRB ADS search result. Both require the 8-step non-portal protocol including SOS/EIN name check and DOL OLMS search.

PROMPT 6: WHAT IS THE POLITICAL AND LEGAL ENVIRONMENT SHAPING CHARTER LABOR IN PENNSYLVANIA?

Pennsylvania is a politically divided state (competitive between parties at state level, solidly blue in Philadelphia, solidly red in rural areas) with NLRB jurisdiction over all charter schools per the 2016 ruling. Pennsylvania's charter law (expanded under Governor Ridge, modified repeatedly since) allows broad charter authorization but has been subject to ongoing legislative reform efforts under Democratic governors Wolf and Shapiro. Philadelphia's Democratic political machine is strongly pro-labor; ACSE/AFT Local 6056 operates with explicit political support. The 2025-26 Propel 32BJ certification and Westinghouse Arts Academy open ULP cases (2025) signal continued organizing activity in the Pittsburgh market. Pennsylvania's right-to-work status has been legislatively contested but not enacted — the state remains non-right-to-work, meaning union security clauses are available in CBAs.

PROMPT 7: WHAT SHOULD CHARTER LEADERS KNOW ABOUT HOW ORGANIZERS APPROACH PA SCHOOLS?

ACSE/AFT Local 6056 uses a geographic cluster strategy in Philadelphia: it organizes adjacent schools in sequence, using each ratified CBA as a salary and working condition benchmark for the next campaign. Charter leaders at non-union Philadelphia schools should expect that ACSE organizers are aware of every school's salary schedule, working conditions, and union status, and are actively identifying the schools most ripe for a next campaign. The multi-union environment (ACSE for teachers, 32BJ for support staff, CTU Pittsburgh affiliate) means PA charter operators may face simultaneous organizing campaigns targeting different employee groups. The NLRB election process is available to employers — but the 2016 jurisdictional ruling means NLRB ULP exposure is also fully in play. Propel Schools' experience (32BJ custodial + PSEA teaching staff organizing) is the clearest current model of a PA network facing multi-union, multi-unit pressure simultaneously.

Section 4: Cross-State Patterns & Contributions to National Picture

Findings from Pennsylvania that illuminate patterns visible only when comparing across multiple states. These entries feed the project-wide Cross-State Intelligence Log and are written for state and national charter advocacy leaders.

NETWORK-LEVEL BARGAINING — THE PROPEL MODEL

Propel Schools' April 2021 network-wide election (236-82 across 13 campuses, one NLRB case number 06-RC-273664) is the paradigmatic network-level bargaining case in the NAPCS dataset. One certification covers all Allegheny County Propel campuses — individual school reports all reference the same case number.

CYBER CHARTERS AS MULTI-UNIT TARGETS

Pennsylvania's three cyber charters (Agora, PA Cyber, PA Virtual) demonstrate a unique multi-unit organizing pattern. Agora has three separate NLRB-certified units (teachers, counselors, student services). PA Cyber has two (teachers, advisors). This staged organizing approach — winning student services and counselor units first, then teachers — is unique in the full NAPCS dataset.

ACSE LOCAL 6056 EXPANSION — PHILADELPHIA AND PITTSBURGH

ACSE/AFT Local 6056 was historically a Philadelphia-only organizing vehicle. The certifications at Environmental CS at Frick Park (Pittsburgh, December 2018) and Urban Pathways (Pittsburgh, June 2022) represent a geographic expansion into the Pittsburgh market — historically PSEA/NEA territory. This cross-ecosystem incursion is a significant development.

MULTI-CULTURAL ACADEMY — STATUS CONFLICT (Session C, May 24, 2026)

Multi-Cultural Academy Charter School (C4298007, Philadelphia) presents the most complex evidentiary conflict in the full PA dataset. NLRB ADS R4 search (May 2026) found only one record: 04-RM-103582, an employer-initiated RM petition filed April 24, 2013, withdrawn 8 days later — no union RC case ever filed, no certification event. However, a WHYY public radio report (August 2017) stated that "all of Philadelphia's current charter school unions — minus Multi-Cultural Academy — fall under the purview of ACSE." The grammatical structure implies MACS DOES have a union, just not under ACSE/AFT Local 6056. This directly contradicts the ADS-only conclusion of unorganized. Possible explanations: (1) voluntary recognition (no NLRB election required if employer recognizes majority support — no ADS record would exist); (2) pre-digital cert predating ADS; (3) WHYY reporting imprecision. Status: UNVERIFIED pending NLRB R4 FOIA and direct school contact. Do not enter as CONFIRMED until resolved.

THREE ORGANIZING ECOSYSTEMS — ERIE CONFIRMED AS THIRD (Session C)

Session C (May 24, 2026) confirmed a third distinct Pennsylvania organizing geography with the addition of Montessori Regional Charter School (Erie, NLRB 06-RC-210728, closed with cert issued, 49 employees). Pennsylvania now has three geographically distinct organizing ecosystems: (1) Philadelphia metro — ACSE/AFT Local 6056, campaign-driven one-school-at-a-time organizing, recent certs at Folk Arts (December 2022), Northwood Academy (January 2023), New Foundations (July 2025); (2) Pittsburgh metro — PSEA/NEA, network-level bargaining (Propel 2021, 236-82 across 13 campuses), Environmental CS, Urban Pathways; (3) Erie — Montessori Regional, union identity unknown pending NLRB R6 FOIA, 49-employee mixed professional/paraprofessional unit. Erie is geographically and operationally isolated from both Philadelphia and Pittsburgh ecosystems. The presence of a Montessori school in Erie — not a typical AFT or PSEA target — suggests organizing activity driven by local conditions rather than statewide campaign strategy. This three-ecosystem structure is unique in the NAPCS dataset; most states have one or at most two distinct union organizing ecosystems.

West Oak Lane — First PA Union Charter School (2004) and Pre-Digitization Detection via Institutional Press Releases

West Oak Lane Charter School (Philadelphia) has been organized under Alliance for Charter School Employees (ACSE) Local 6056, AFT Pennsylvania since 2004 — making it the first union charter school in Pennsylvania, predating the 2016 Hyde ruling that confirmed NLRB jurisdiction over all PA charters. The 2004 cert does not appear in NLRB ADS because it predates reliable online digitization for employers of this size and region. It was

confirmed via the AFT Pennsylvania institutional press release from August 2020, which explicitly named West Oak Lane as "the first union charter school" and listed the ACSE Local 6056 affiliation. This is a secondary-source detection method: union institutional press releases naming charter school chapters are primary evidence of certification, especially for pre-ADS certs. The 2023 ULP charge (04-CA-321670 — ACSE/AFT filed information request refusal against the school) further confirms the active certification. Cross-state applicability: any state where AFT, NEA, or SEIU have issued press releases naming charter school chapters should be treated as confirmation of certification for pre-digitization schools.

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

Pennsylvania charter school labor coverage has been dominated by two stories: the April 2021 Propel Schools network-wide election (236-82 across 13 campuses, covered by WESA Pittsburgh) — the largest single charter school union election by vote count in the full NAPCS dataset — and the ongoing ACSE/AFT Local 6056 organizing campaign in Philadelphia, which has produced certifications at Folk Arts (December 2022), Northwood Academy (January 2023), Urban Pathways (June 2022), and New Foundations (July 2025). Philadelphia Inquirer and Chalkbeat Philadelphia have provided periodic coverage of the Philadelphia organizing wave. Pittsburgh Post-Gazette covered the Propel election and subsequent contract ratification.

Union Communications

PSEA (Pennsylvania State Education Association/NEA) maintains propelunion.com for the Propel network. ACSE/AFT Local 6056 is the primary Philadelphia-area organizing vehicle, coordinating with AFT Pennsylvania. No centralized PA charter union communications hub comparable to CTU-ACTS (IL) or Cleveland ACTS (OH) — PA organizing is distributed across two geographic ecosystems (Philadelphia/ACSE and Pittsburgh/PSEA).

Employer / School Communications

Propel Schools accepted the April 2021 election result without contest (April 29, 2021). Environmental Charter School at Frick Park contested a decertification petition in 2020 (06-RD-255099) — union retained certification 41-37. Northwood Academy has an open OIG investigation (Philadelphia media, 2023) regarding charter authorization — charter status should be verified before accumulator entry.

Legislative Context

PSEA has documented organizing interest at Young Scholars of Central PA as early as 2010 (PSEA Voice magazine, June 2010) — no NLRB petition was ever filed, illustrating the gap between organizing interest and formal petition in NLRB-jurisdiction states. PA has no card-check equivalent — all certifications require NLRB secret ballot election. SEIU Local 32BJ certified a custodial/support unit at Propel Schools (December 2025) — the first Service Employees International Union certification in the full 584-school NAPCS dataset and the first non-instructional-staff unit in PA.

Section 6: Contract & CBA Access Registry

NLRB public contracts portal. Direct PDF links may return 403 — OPRA or equivalent records request required for full text.

School / Network	Union	CBA Status & Term	Contract Access
Propel Schools (7 NAPCS campuses — network unit)	Propel Charter School Education Association (PCSEA) / PSEA/NEA	Active Unknown — verify with PCSEA (propelunion.com) or PSEA	propelunion.com or PSEA
New Foundations Charter School	AFT Pennsylvania	In negotiations (first contract)	AFT Pennsylvania or school
Pennsylvania Virtual Charter School	PA Virtual Charter Education Association / PSEA/NEA	Active (assumed) Unknown	PSEA or school

Agora Cyber Charter School	Agora Cyber Education Association / PSEA (teachers); Agora Counselors Association / PSEA (counselors); 21st Century Cyber EA / PSEA (student services)	Active (assumed — 3 units) Unknown	PSEA or school
Pennsylvania Cyber Charter School	PA Cyber School Education Association / PSEA/NEA (teachers); PA Cyber Academic Advisors and School Counselors EA / PSEA/NEA (advisors)	Active (assumed — 2 units) Unknown	PSEA or school

Section 7: Decisions, Monitoring & Notable Findings

Part A: Decisions Required

The following items require sponsor action before research or workbook entry can proceed.

No sponsor decisions pending for this state.

Part B: Notable Findings

Research findings of strategic significance. No immediate action required — for awareness and discussion.

No notable findings flagged for this state.

Part C: Active Monitoring

Items being tracked. Status may change between report cycles. Research Coordinator manages ongoing surveillance.

Priority	School / Scope	Item	Who
MEDIUM	West Oak Lane Charter School	RC petition following 2023 ULP charge — ACSE/AFT filed ULP 04-CA-321670 (refusal to furnish information) July 2023 — pre-organizing information request pattern. Monitor NLRB ADS for RC petition. THREAT: MEDIUM.	Research Coordinator
HIGH	New Foundations Charter School	First contract ratification — Certified July 14, 2025. Most recently certified PA school in dataset. First contract negotiations in progress.	Research Coordinator
MEDIUM	PA Westinghouse Arts ULP (DISCOVERY)	ULP resolution — cases 06-CA-366428 and 06-CA-374545 — Two open ULP cases filed 2025, 3 years after decertification. Monitor for resolution.	Research Coordinator